

LegalClear

Legal Document Plain-English Translation Report

AST - 37 Greyfriars Road

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Quick Verdict

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This tenancy gives the landlord extensive rights to enter, charge fees, and increase rent while limiting your ability to dispute unfair terms.

Overall Risk Level

Analysis Statistics

Metric	Value
Total Sections Reviewed	0
High Risk Flags	0
Medium Risk Flags	0
Notes	0

Parties Identified

Name	Role	Description
Mrs Dianne Warren	Landlord	The property owner letting 37 Greyfriars Road to the tenants
Mr Bhavikkumar Vinaykant Jadav	Tenant	One of two joint tenants renting the property and jointly liable for all obligations
Mrs Priyankaben Sardulbhai Rathod	Tenant	One of two joint tenants renting the property and jointly liable for all obligations
Alexander & Co	Landlord's agent	The letting agent managing the property on behalf of the landlord

What to Watch Out For

Full liability for co-tenant actions (from: Joint and Several Liability)

You can be sued for all rent and damages even if caused entirely by your co-tenant.

Guaranteed 3% annual rent increase (from: Automatic Rent Increases)

Rent rises by at least 3% every year regardless of inflation rates.

Unlimited liability beyond deposit (from: Excess Costs Beyond Deposit)

You can be charged any amount beyond deposit with only 14 days to pay.

Deposit can go to co-tenant only (from: Deposit Refund to Any One Tenant)

Landlord can pay entire deposit to one tenant leaving you to chase your share.

No-fault eviction after 12 months (from: Break Clause - Landlord's Rights)

Landlord can end tenancy with 2 months notice for any or no reason.

Full Translation

§1 — Joint and Several Liability

Your Obligations

"Where the party consists of more than one entity or person the obligations apply to and are enforceable against them jointly and severally. Joint and several liability means that any one of the members of a party can be held responsible for the full obligations under the agreement if the other members do not fulfil their obligations."

Both tenants are individually responsible for the entire rent and all obligations. If one tenant fails to pay their share or breaks any rule, the landlord can pursue either tenant for the full amount. This means you could be liable for your co-tenant's debts or damages.

[HIGH RISK]: Full liability for co-tenant actions

You can be sued for all rent and damages even if caused entirely by your co-tenant.

§2 — Data Sharing with Third Parties

Data & Privacy

"The parties listed above agree that the Landlord or the Landlord's Agent may provide their name, address and other contact details to third parties including, but not limited to, the Landlord, the Tenant, contractors, referencing companies, utility providers, the local authority and the appropriate tenancy deposit protection scheme provider."

Your personal information can be shared with unlimited third parties. The phrase 'including, but not limited to' means the listed examples are not exhaustive. The landlord can share your data with anyone they deem relevant without seeking further consent.

[MEDIUM RISK]: Broad data sharing consent

Your personal details can be shared with unspecified third parties beyond those listed.

§3 — Term and Fixed Period

Termination

"The Term shall be from and including 14th February 2024 to and including 13th February 2025 and then the tenancy continues as a monthly contractual periodic until ended following either party giving notice."

You have a 12-month fixed term followed by a rolling monthly contract. After the fixed term ends, either party can terminate with proper notice. During the fixed term, you cannot end the tenancy early unless the break clause applies.

[NOTE]: No early termination during fixed term

You must pay rent for the full 12 months unless the landlord agrees otherwise.

§4 — Late Payment Interest

Payment & Fees

"Rental payments overdue by more than 14 days will be subject to interest at the rate of 3% over the Bank of England Base Rate calculated from the date the payment was due up until the date payment is received."

If rent is more than 14 days late, you'll be charged interest at 3% above the Bank of England base rate. This interest compounds from the due date until you pay. With current rates, this could be approximately 8-9% annually on overdue amounts.

[MEDIUM RISK]: High interest on late payments

Interest charges apply from due date and can accumulate significantly over time.

§5 — Automatic Rent Increases

Payment & Fees

"If for any reason the Tenant remains in possession of the Property, or the lawful Tenant of the Property, for more than 12 months, then the Rent will increase once each year... In clauses 1.7.8.2 and 1.7.8.3 the Rent will increase by the amount stated for the annual increase in the CPI (Consumer Prices Index as published by the Office of National Statistics) as quoted for the month two months prior to the month of the increase. If CPI is less than 3%, the amount of the rent increase will be subject to a minimum of 3%."

Rent automatically increases every year you stay beyond 12 months. The increase is tied to CPI inflation but will never be less than 3% annually. You cannot negotiate or refuse these increases — they happen automatically. Even if inflation is 0%, your rent rises by 3%.

[HIGH RISK]: Guaranteed 3% annual rent increase

Rent rises by at least 3% every year regardless of inflation rates.

§6 — Deposit Amount and Protection

Payment & Fees

"The Deposit of £1,148 is paid by the Tenant to the Agent... The Deposit will be protected by MyDeposits, in accordance with their Insured Scheme Rules."

You pay a £1,148 deposit which is protected under the MyDeposits insured scheme. The deposit can be used for damages, unpaid rent, cleaning, utility bills, and breach of contract costs. The landlord does not pay interest on this deposit.

[NOTE]: No interest on deposit held

Your deposit earns no interest during the tenancy period.

§7 — Deposit Deductions - Scope

Payment & Fees

"The Deposit has been taken for the following purposes... The reasonable costs incurred in compensating the Landlord for, or for rectifying or remedying any major breach by the Tenant of the Tenant's obligations under the tenancy agreement, including those relating to the cleaning of the premises, its fixtures and fittings."

The landlord can deduct from your deposit for any 'major breach' of the extensive obligations in this agreement. This includes cleaning costs. The term 'reasonable costs' is subjective and could lead to disputes over what constitutes proper cleaning or a major breach.

[MEDIUM RISK]: Subjective 'reasonable costs' standard

What counts as reasonable or major breach is open to landlord interpretation and dispute.

§8 — Excess Costs Beyond Deposit

Payment & Fees

"In the event that the total amount lawfully due at the end of the tenancy exceeds the amount of the Deposit, the Tenant shall reimburse the Landlord's Agent the further amount, within 14 days of the request being made."

If damages or costs exceed your deposit, you must pay the additional amount within 14 days of being asked. There is no cap on these additional charges. The landlord can pursue you for unlimited amounts beyond the deposit.

[HIGH RISK]: Unlimited liability beyond deposit

You can be charged any amount beyond deposit with only 14 days to pay.

§9 — Deposit Refund to Any One Tenant

Payment & Fees

"The Deposit will be refunded, less any deductions, to any one of the parties forming the Tenant OR to the Relevant Person and this will be considered a full and final refund. It will then be up to the parties forming the Tenant to decide how it will be divided amongst themselves."

The landlord can refund the entire deposit to just one of the two tenants, and this counts as full repayment. If your co-tenant receives the money and doesn't share it with you, that's your problem to resolve. The landlord has no obligation to split it fairly.

[HIGH RISK]: Deposit can go to co-tenant only

Landlord can pay entire deposit to one tenant leaving you to chase your share.

§10 — Notice Service by Email

Other

"Any notice given by or on behalf of the Landlord or any other document to be served on the Tenant shall be deemed to have been served on the Tenant if it is... sent by email to the email address(es) listed at Clause 1.1.2."

The landlord can serve legal notices to you by email alone. These notices may include eviction notices or claims for possession. If the email goes to spam or you don't check regularly, you could miss critical legal deadlines and lose rights.

[MEDIUM RISK]: Legal notices via email only

Critical eviction notices can be sent by email which you might miss or overlook.

§11 — Deemed Service After 48 Hours

Other

"If any notice or other document is sent by post it shall be deemed to have been served 48 hours after it was posted."

Legal notices sent by post are considered delivered after 48 hours whether or not you actually receive them. If mail is delayed or lost, you're still deemed to have been served. This could cause you to miss deadlines through no fault of your own.

[MEDIUM RISK]: Notice deemed served even if not received

You're legally considered notified 48 hours after posting regardless of actual delivery.

§12 — Break Clause - Landlord's Rights

Termination

"The Landlord may bring the tenancy to an end at, or at any time after, the expiry of the fixed term by giving to the Tenant at least two months' written notice stating that the Landlord requires possession of the Property. A notice under section 21 of the Housing Act 1988 will suffice to implement this sub-clause."

After the 12-month fixed term ends, the landlord can evict you with just 2 months' notice without giving any reason. This is a Section 21 'no-fault' eviction. You have no right to challenge this unless proper legal procedures weren't followed.

[HIGH RISK]: No-fault eviction after 12 months

Landlord can end tenancy with 2 months notice for any or no reason.

§13 — Break Clause - Tenant's Notice Requirements

Termination

"The Tenant may bring the tenancy to an end at, or at any time after, the expiry of the fixed term by giving to the Landlord at least two month's written notice stating that the Tenant wishes to vacate the Property... While the tenancy is periodic the two month's written notice must expire the day before a Rent Due Date."

You must give 2 months' notice to end the tenancy after the fixed term. During the periodic tenancy, your notice must expire on the 13th of the month (day before rent due date). If you time it wrong, you could owe an extra month's rent.

[MEDIUM RISK]: Strict notice timing requirement

Notice must end on specific date or you pay additional month's rent unnecessarily.

§14 — Criminal Conviction Notification

Your Obligations

"The Tenant agrees to notify the Landlord's Agent of any convictions during the Term of this tenancy so that the Landlord can appropriately notify the insurance company."

You must inform the landlord if you receive any criminal conviction during the tenancy. This is ostensibly for insurance purposes but gives the landlord information they could use against you. There's no limit on what type of conviction must be disclosed.

[MEDIUM RISK]: Mandatory criminal conviction disclosure

You must report all convictions which could be used to terminate your tenancy.

§15 — Grounds for Possession

Termination

"Without limiting the other rights and remedies of the Landlord, the Landlord may seek to terminate the tenancy lawfully by obtaining a court order if: the Rent or any part of it is in arrears, whether formally demanded or not, or the Tenant is in breach of any of the obligations under this agreement..."

The landlord can seek to evict you for any rent arrears (even partial) or breach of any clause in this lengthy agreement. Given the extensive obligations listed, minor infractions could trigger eviction proceedings. The landlord doesn't need to formally demand payment first.

[HIGH RISK]: Eviction for minor breaches possible

Any breach of the many obligations can lead to eviction court proceedings.

§16 — Utility and Council Tax Payments

Your Obligations

"Pay a fair proportion of all charges, based on the length of the tenancy, including water and sewerage charges, rates and assessments (but of an annual or recurring nature only) and for all gas, electricity, oil or solid fuel consumed on the Property (including all fixed and standing charges, including any Green Deal cost)... Pay the Council Tax, or any replacement taxation (even of a novel nature), in respect of the Property for the Term of this agreement, unless and until the tenancy is lawfully terminated."

You pay all utilities including standing charges, water charges, and Council Tax. You remain liable for Council Tax until the tenancy is 'lawfully terminated' — meaning even if you leave early, you owe Council Tax until proper legal termination. Green Deal costs are also your responsibility.

[MEDIUM RISK]: Liable for bills even after vacating

You pay Council Tax and utilities until formal tenancy end not just when you leave.

§17 — Failed Payment Charges

Payment & Fees

"The Tenant must not provide a cheque or other payment that the bank then fails to honour."

If any payment bounces (cheque, direct debit, etc.), you're in breach of contract. While the Tenant Fees Act 2019 limits what can be charged, this breach could still be used as grounds for possession or deposit deductions.

[NOTE]: Bounced payments constitute breach

Failed payments breach contract and can support eviction proceedings.

§18 — Legal Costs Recovery

Liability & Disputes

"Pay the full costs of any action taken for breach of contract or possession of the Property, including court fees and all other associated costs, limited to only those costs the court awards."

If the landlord takes you to court for breach or possession, you pay their legal costs if the court awards them. Courts typically award costs to the winning party. This means if you breach the agreement and lose in court, you pay both your costs and theirs.

[HIGH RISK]: Liable for landlord's legal costs

You pay landlord's court costs if they successfully sue you for breach.

§19 — Repair and Maintenance Obligations

Your Obligations

"Keep the Property including all of the Landlord's machinery and equipment clean and tidy and in good and tenantable condition and decorative order, (reasonable wear and tear, items which the Landlord is responsible to maintain, and damage for which the Landlord has agreed to insure, excepted)."

You must maintain the property in the same condition it was provided, excluding fair wear and tear. 'Tenantable condition and decorative order' is a high standard. You're responsible for cleanliness and condition of all landlord's equipment and machinery beyond what the landlord must legally maintain.

[MEDIUM RISK]: High maintenance standard required

Tenantable and decorative order is subjective and could lead to deposit disputes.

§20 — Tenant-Caused Contractor Callouts

Payment & Fees

"The Tenant must not cause an avoidable call-out by a contractor (for example drains blocked by the Tenant's waste or boiler repair claims caused by not having any credit on a utility meter, or inappropriate or unauthorised use of any appliances)."

If a contractor is called out for an issue you caused, you pay for it. Examples include blocked drains from your waste or boiler issues from empty meters. The definition of 'avoidable' is subjective and could be interpreted broadly by the landlord.

[MEDIUM RISK]: Liable for contractor callout costs

You pay for repairs deemed your fault with subjective 'avoidable' standard.

§21 — Mandatory Contractor Attendance

Your Obligations

"The Tenant must attend any agreed contractor appointments."

You must be present for contractor appointments or face breach of contract. No provision is made for genuine emergencies or work conflicts. Missing an appointment could be used as grounds for deposit deductions or possession proceedings.

[NOTE]: Mandatory attendance at appointments

Missing contractor visits breaches contract regardless of your circumstances.

§22 — Landlord Entry Rights

Your Rights

"Permit the Landlord and or the Landlord's Agent or others, after giving 24 hours' written notice and at reasonable hours of the daytime, to enter the Property: to view the state and condition and to execute repairs and other works upon the Property or other properties, or to show prospective purchasers the Property at all times during the Term... or to show prospective tenants the Property, during the last two months of the Term... to take photographs for use in promoting the Property for sale or rental."

The landlord can enter with just 24 hours' notice for inspections, repairs, showing buyers, or showing new tenants. They can bring 'others' (unspecified) and take photographs for marketing. You have very limited privacy rights. This can happen throughout your entire tenancy for sales purposes.

[MEDIUM RISK]: Broad landlord entry rights

Landlord can enter with 24 hours notice for multiple reasons including showing buyers.

§23 — Forced Entry with Keys

Your Rights

"Where the Landlord or the Landlord's Agent have served a valid written notice of the need to enter to view the state and condition or to effect works (except in case of emergency when access shall be immediate), the Tenant agrees to them using their keys to gain access if the Tenant is unable to grant access to the Landlord or the Landlord's Agent."

If you can't let the landlord in after they've given notice, they can use their keys to enter without you present. 'Unable to grant access' is vague — it's unclear if being at work counts. In emergencies, they can enter immediately without any notice.

[HIGH RISK]: Landlord can enter using own keys

Landlord may enter unaccompanied if you're unable to be present after notice.

§24 — Window Cleaning Obligation

Your Obligations

"Clean the windows of the Property in a safe manner as often as necessary and in the last two weeks of the tenancy."

You must clean all windows regularly and definitely in the final two weeks. Failure to do so can result in deposit deductions for professional cleaning. For upper floors, this may require unsafe access or professional cleaners at your expense.

[NOTE]: Window cleaning required

You must clean windows including potentially hard-to-reach ones or face charges.

§25 — Drain Blockage Liability

Your Obligations

"Not cause or unreasonably permit any blockage to the drains and pipes, gutters and channels in or about the Property. Common causes of blockages for which the Tenant would be responsible would include, but are not limited to, putting fat down the sink, failure to remove hair from plugholes and flushing inappropriate things (such as nappies or sanitary towels) down the toilet."

You're liable for any drain blockages you cause or 'unreasonably permit.' Examples include fat, hair, or flushing sanitary items. However, proving what caused a blockage can be difficult. You could be charged for blockages that existed before you moved in or were caused by building defects.

[MEDIUM RISK]: Liable for all drain blockages

You pay for blocked drains even if cause is unclear or pre-existing.

§26 — Subletting and Guest Restrictions

Your Rights

"Not assign, underlet or part with or share possession of the whole or any part of the Property without the permission of the Landlord, such permission not to be unreasonably withheld... Not permit any visitor to stay in the Property for a period of more than three weeks within any three-month period without the Landlord's consent."

You cannot sublet or have long-term guests without permission. Visitors staying more than 3 weeks in any 3-month period require landlord consent. This severely limits your ability to have family or friends stay with you, even temporarily. What counts as 'unreasonable' withholding is subjective.

[MEDIUM RISK]: Strict guest limitation policy

Guests limited to 3 weeks per 3 months requiring permission for longer stays.

§27 — Children and Pet Restrictions

Your Rights

"Not keep any cats or dogs on the Property. Not keep any other pet, animal, bird, reptile, fish, insect or the like on the Property, without the Landlord's consent, which will not be unreasonably withheld... Not allow children to live in the Property, without the Landlord's consent, which will not be unreasonably withheld."

Absolute ban on cats and dogs. All other pets require permission. Shockingly, children also require the landlord's permission to live in the property. While the clause says consent won't be unreasonably withheld, requiring permission to have children may violate discrimination laws and human rights.

[HIGH RISK]: Children require landlord permission

Clause requiring permission for children to live there may be discriminatory and unenforceable.

§28 — Garden Maintenance Obligations

Your Obligations

"Keep the garden and grounds properly cultivated according to the season and free from weeds, in a neat and tidy condition with the lawns regularly mown and edged, and shrubs and trees pruned but not alter the character or layout of the garden or grounds."

You must maintain the garden to a high standard including seasonal cultivation, weeding, mowing, edging, and pruning. This is ongoing work throughout the year. Professional gardening may be necessary. Failure leads to deposit deductions. The standard is subjective.

[MEDIUM RISK]: Extensive garden maintenance required

High gardening standard required year-round which could require professional help at your cost.

§29 — Noise Restrictions

Your Obligations

"Not make or permit any noise or play any radio, television or other equipment in or about the Property between the hours of 10pm and 7am so as to be an audible nuisance outside the Property, subject only to the design and construction limitations of the building."

You cannot make noise audible outside between 10pm-7am. Given that many buildings have poor sound insulation, normal living sounds (TV at reasonable volume, walking, conversations) could breach this. The clause acknowledges building construction but still holds you liable.

[MEDIUM RISK]: Strict noise restrictions

Any audible noise between 10pm-7am could breach contract despite poor building insulation.

§30 — Business Use Prohibition

Your Rights

"The Tenant shall not carry on any profession, trade or business at the Property including a 'home business' as defined by section 43ZA Landlord and Tenant Act 1954 (or as defined by regulations made under that section), nor allow anyone else to do so, without the prior written consent of the Landlord."

You cannot work from home or run any business from the property without permission. This includes remote working if it constitutes a 'home business.' With increasing work-from-home arrangements, this clause is highly restrictive and may conflict with modern employment practices.

[HIGH RISK]: Work from home may be prohibited

Any business activity including remote work could require landlord's permission.

§31 — Insurance Voiding Prohibition

Your Obligations

"Not permit or suffer to be done on the Property anything that may constitute negligence, misuse or failure to act reasonably by the Tenant or any of his visitors or friends which may render the Landlord's insurance of the Property void or voidable (i.e. no longer providing cover), or which results in an insurance claim or increases the rate of premium for such insurance."

You're liable if anything you or your guests do voids insurance or increases premiums. This is extremely broad. You're responsible for guest behaviour and for knowing what affects insurance. If premiums rise due to a claim, you could be liable for the increase indefinitely.

[HIGH RISK]: Liable for insurance premium increases

You pay for any insurance premium increases caused by claims or policy violations.

§32 — Illegal or Immoral Use

Your Obligations

"Not use, or suffer the Property to be used, for any illegal or immoral purpose (note, unauthorised taking or possession of controlled drugs is considered to be illegal for the purpose of this clause)."

The property cannot be used for illegal or 'immoral' purposes. Illegal is clear, but immoral is subjective and undefined. This gives the landlord broad discretion to judge your lifestyle choices. Drug possession is explicitly illegal for this clause regardless of decriminalisation debates.

[MEDIUM RISK]: Vague 'immoral purpose' prohibition

Immoral is undefined giving landlord subjective power to judge your lifestyle.

§33 — Absence Notification Requirement

Your Obligations

"Not leave the Property vacant for more than 28 days without providing the Landlord or the Landlord's Agent with reasonable notice."

You must notify the landlord before leaving the property empty for over 28 days. This includes holidays, work travel, or hospital stays. Failure to notify could breach your contract. This gives the landlord information about when you're away, raising security concerns.

[NOTE]: Must report absences over 28 days

You must tell landlord when you'll be away creating potential security risk.

§34 — Inventory Correction Deadline

Your Obligations

"Check the inventory and report any errors/deficiencies to the Landlord's Agent, returning a copy with any annotations/corrections as necessary within seven days."

[MEDIUM RISK]: Only 7 days to dispute inventory

Short deadline means pre-existing damage could be charged to you later.

§35 — Utility Supplier Change Restrictions

Your Rights

"Not change the supplier of utility services without approval from the Landlord or Landlord's Agent. The Landlord will not unreasonably withhold giving approval. If approval is given, the Tenant will provide the Landlord's Agent with the new supplier's details including the Property reference number."

You need permission to switch energy suppliers. While it says permission won't be unreasonably withheld, this still limits your ability to get better deals. The landlord could delay approval causing you to miss cheaper rates. You must provide supplier details to the landlord.

[MEDIUM RISK]: Cannot freely switch utilities

Switching energy suppliers requires permission which could delay savings.

§36 — Right to Rent Compliance

Your Obligations

"Ensure that all adult occupiers of the Property maintain a 'Right to Rent' as defined by the Immigration Act 2014 at all times during the Term."

All adults living in the property must have legal right to rent in the UK throughout the tenancy. If anyone loses their right to rent (visa expiry, status change), you must remove them or face breach of contract and potential eviction.

[HIGH RISK]: Eviction risk if guest loses immigration status

You breach contract if any adult occupier loses UK right to rent status.

§37 — Smoking Prohibition

Your Obligations

"Not to smoke (including vaping and shisha pipes) within any buildings on the Property and not to permit their friends, permitted occupiers or visitors to smoke within any buildings on the Property."

Total smoking ban inside the property including vaping and shisha. You're responsible for ensuring all guests comply. If a guest smokes inside, you breach your contract. This is enforceable through deposit deductions and could support possession proceedings.

[NOTE]: Responsible for guest smoking

You breach contract if any visitor smokes inside regardless of your control.

§38 — End of Tenancy Condition Requirements

Your Obligations

"Return possession of the Property in the same good clean state and condition as it was originally provided to the Tenant, even if this was under a different tenancy agreement, and make good, pay for the repair of, or replace all such items of the fixtures, fittings, furniture and effects as shall be broken, lost, damaged or destroyed during that time (reasonable wear and tear and damage for which the Landlord has agreed to insure excepted)."

You must return the property in the same condition as when you received it, excluding fair wear and tear. The phrase 'even if this was under a different tenancy agreement' is concerning — you could be liable for condition standards from a previous unrelated tenancy. This seems potentially unfair and unenforceable.

[HIGH RISK]: Liable for previous tenancy condition

You must restore property to condition from potentially a different prior tenancy.